

HOUSE BILL 833

By Keisling

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 8; Title 38 and Title 68, relative to
illegal aliens.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 3, Part 20, is amended by adding the following as a new section:

(a) Each law enforcement agency, except for the Tennessee bureau of investigation (TBI), shall report monthly to the department of safety each interaction that the law enforcement agency had with illegal aliens over the previous month. The report must include the date of the interaction, the number of illegal aliens encountered, and a description of identification documents, if any, in their possession. The law enforcement agency shall include in the report copies of the identification documents found during an interaction with an illegal alien. A law enforcement officer who arrests an illegal alien for a crime and who suspects the illegal alien possesses fake identification documents shall confiscate the identification documents. The law enforcement agency shall include information about confiscated identification documents in the report.

(b) The department shall work with law enforcement agencies to standardize the reporting criteria and process.

(c) The department shall use the reports submitted pursuant to subsection (a) to develop a report detailing illegal alien presence and activity in this state. The department shall share its reports with the Tennessee bureau of investigation on a regular basis.

(d) The department shall provide a report to the general assembly by December 1 annually or at the request of the speaker of the senate or the speaker of the house of representatives. This report must include an assessment of the population of illegal aliens residing in this state and any associated criminal enterprises. The report must also include a threat analysis for this state. The department shall structure the reports to the general assembly so that ongoing investigations are not compromised by the information shared.

(e) The department shall share its reports with law enforcement agencies to ensure an integrated approach to addressing issues with illegal aliens and any unlawful activities in which they are engaged.

(f) As used in this section, "illegal alien" means an individual who enters or resides in the United States without authorization under federal law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.